

STATE OF NEW YORK

5849--A

2025-2026 Regular Sessions

IN SENATE

March 3, 2025

Introduced by Sen. SKOUFIS -- read twice and ordered printed, and when printed to be committed to the Committee on Consumer Protection -- recommitted to the Committee on Consumer Protection in accordance with Senate Rule 6, sec. 8 -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the general business law, in relation to items left by guests of hotels or other lodging facilities

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. The general business law is amended by adding a new section
2 210 to read as follows:

3 § 210. Items left by guests of lodging facilities. 1. For the purposes
4 of this section:

5 (a) "lodging facility" shall mean any hotel, motel, steamboat, tourist
6 cabin, camp, resort, tavern, inn, boarding or lodging house.

7 (b) "identification documents" shall mean any identification card or
8 document issued by a federal, state or local government, agency, or
9 tribal authority which can be used to identify the individual issued
10 such card or document including, but not limited to, a birth certifi-
11 cate, driver's license, non-driver identification card, passport,
12 social security card, immigration document, insurance card, or benefits
13 card.

14 2. The owner, lessor, proprietor, or manager of a lodging facility
15 shall request from each guest at the time of booking and at the begin-
16 ning of the guest's stay whether such guest would like to be contacted
17 if items of greater than nominal value, identification documents, or
18 copies of identification documents are left behind and, if so, how to be
19 contacted. The guest shall be provided with the option to be contacted
20 by phone and/or e-mail and the option to leave a phone number and/or
21 e-mail address to be contacted through.

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

LBD07613-02-6

1 3. Where the guest chose to be contacted under subdivision two of this
2 section and left such items or documents behind after their stay, the
3 owner, lessor, proprietor, or manager of the lodging facility shall make
4 reasonable efforts to contact such guest including, but not limited to,
5 at least two contact attempts within forty-eight hours of the guest
6 completing their stay using the contact information and contact method
7 or methods provided under subdivision two of this section and, if no
8 such contact information was provided, the information used to book the
9 stay. A lodging facility shall keep a record of the lost item or docu-
10 ment and the steps taken to notify the guest.

11 4. If contact cannot be made with the guest or the guest chose not to
12 be contacted, the owner, lessor, proprietor, or manager shall dispose of
13 any identification documents and copies of such documents. Disposal of
14 identification documents or copies of such documents shall include the
15 physical destruction of any such physical documents or copies such that
16 it would be impossible to recreate the document or copy.

17 5. A lodging facility owner or operator shall not be held liable for
18 any loss or damage to a guest's lost item or document during storage or
19 shipping.

20 § 2. This act shall take effect on the thirtieth day after it shall
21 have become a law.